

District: Dinajpur

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present

Mr. Justice Sardar Md. Rashed Jahangir

Civil Revision No. 2247 of 2023

In the matter of :

Sree Suniram Hembrom

... Petitioner

-Versus-

Sree Samuyel Soren and others

...Opposite-parties

No one appears for the petitioner

Mr. Abdullah Al Mamun, Advocate

...For the opposite-parties

Judgment on: 24.10.2024

Rule was issued upon granting Leave under section 115(4) of the Code of Civil Procedure calling upon the opposite-party No. 1 to show cause as to why the judgment and order dated 28.03.2023 passed by the Additional District Judge, Dinajpur in Miscellaneous Appeal No. 61 of 2022 allowing the appeal, reversing the order dated 09.05.2022 passed by the Senior Assistant Judge, Parbotipur, Dinajpur in Other Class Suit No. 70 of 2020 rejecting the application for temporary injunction filed on

behalf of the plaintiff-opposite-party should not be set aside and/or such other or further order or orders as to this Court may seem fit and proper.

At the time of issuance of the Rule, this Court passed an ad interim order directing the parties to maintain status-quo in respect of possession and position of the suit land (subject matter).

Short facts necessary for disposal of the Rule are that the plaintiff-opposite-party No. 1 filed Other Class Suit No. 70 of 2020 for permanent injunction, restraining the defendant Nos. 4 and 5 from installing electricity connection to the shallow tube-well situated at 'Kha' scheduled property of defendant No. 1. In the said suit the plaintiff also filed an application for temporary injunction under Order XXXIX, rule 1 read with section 151 of the Code of Civil Procedure praying for an order of temporary restraint upon the defendant Nos. 4 and 5 from installing electricity connection to the shallow tube-well setting up on the defendant No. 1's property. Learned Senior Assistant Judge, Parbotipur, Dinajpur after hearing both the parties by his order dated 09.05.2022 rejected the application for temporary injunction.

Having been aggrieved by the aforesaid order of learned Senior Assistant Judge, Parbotipur, Dinajpur the plaintiff filed

Miscellaneous Appeal No. 61 of 2022 before the District Judge, Dinajpur, ultimately which was heard by the Additional District Judge, Second Court, Dinajpur and by his judgment and order dated 28.03.2023 learned Additional District Judge allowed the miscellaneous appeal, reversing those of dated 09.05.2022 passed by the Senior Assistant Judge, Parbotipur, Dinajpur in Other Class Suit No. 70 of 2022 and thereby allowed the application for temporary injunction filed by the plaintiff.

On being aggrieved by and dissatisfied with the judgment and order of learned Additional District Judge, Second Court, Dinajpur, the defendant-petitioner filed this civil revisional application and obtained the Rule together with an order of status-quo.

None appeared on behalf of the petitioner to place the Rule.

From record, it transpires that this revisional application has arisen out of an interlocutory order of temporary injunction arising out of a pending civil suit.

For effective disposal of this Rule it is not at all necessary to discuss the elaborate facts and submissions made in the revisional application. It further appears that at the time of issuance of the Rule an ad interim direction was passed upon both

the parties to maintain status-quo in respect of subject matter of the suit and the said order still subsists.

In the aforesaid facts and circumstances, this Court is of the view that justice would be best served if the Senior Assistant Judge, Parbotipur, Dinajpur is directed to hear and dispose of the original suit within a shortest possible time.

Accordingly, the Rule is disposed of, the Senior Assistant Judge, Parbotipur, Dinajpur is hereby directed to hear and dispose of the Other Class Suit No. 70 of 2020 as early as possible without allowing any unnecessary adjournment. In the meantime, both the parties are directed to maintain status-quo regarding subject matter of the suit.

No order as to cost.

Communicate the judgment and order at once.